**IN THE NATIONAL COMPANY LAW TRIBUNAL, NEW DELHI**
**COURT-III**

**Item No.105**
New IA(Com.A)- 310/2022
In
CA.CAA-99(ND)/2022

**IN THE MATTER OF:**
M/s. Devyani Airport Services (Mumbai) Pvt Ltd. AND Devyani Food Street Pvt Ltd.
**.... APPLICANT/PETITIONER**

**SECTION**
**U/s 230-232**

**Order delivered on 18.11.2022**

**CORAM:**
**DR. BINOD KUMAR SINHA**
**MEMBER (TECHNICAL)**

**SHRI BACHU VENKAT BALARAM DAS**
**MEMBER (JUDICIAL)**

**PRESENT:**
For the Applicant :
For the Respondent :

**ORDER**

**New IA(Com.A)- 310/2022:-**

This is an application which has been filed seeking modification of the order dated 11.11.2022 wherein in Para 12 of the order, which is stated as follows:-

*"That individual notices of the above said meetings shall be sent by the Applicant Company through e-mail and through speed post, 30 days in advance before the schedule date of the meeting, indicating the day, date, the place and the time as aforesaid, together with a copy of the Scheme of Amalgamation, copy of explanatory statement required to be sent under the Companies Act, 2013 and the prescribed form of proxy shall also be sent along and in addition to the above, any other documents as may be prescribed under the Act or Rules may also be duly sent with the notice."*

The Ld. Counsel submits that as per Rule 6 (2) of Companies (Compromises, Arrangements and Amalgamations) Rules 2016 notice of the



—Sd—

—Sd—

meeting can be sent through registered post or speed post or by courier or by e-mail or by hand delivery or any other mode as directed by the Tribunal.

We, therefore, modify the order dated 11.11.2022 direct that notice shall be sent by registered post or speed post or by courier or by e-mail or by hand delivery as provided under Rule 6(2) of the Companies (Compromises, Arrangements and Amalgamations) Rules 2016.

Therefore, the IA is **allowed**.

-Sd-

**(DR. BINOD KUMAR SINHA)**
**MEMBER (TECHNICAL)**

-Sd-

**(BACHU VENKAT BALARAM DAS)**
**MEMBER (JUDICIAL)**

New IA(Com.A)- 310/2022
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Mamta-18.11.2022